



OFFICE OF THE POLICE COMMISSIONER
ONE POLICE PLAZA • ROOM 1400

May 3, 2013

Memorandum for: Deputy Commissioner, Trials

Re: **Police Officer Frank Torres**
Tax Registry No. 927601
Brooklyn Court Section
Disciplinary Case No. 2010-3275

GRANT

The above named member of the service appeared before Assistant Deputy Commissioner Amy J. Porter on February 11, 2013, and was charged with the following:

DISCIPLINARY CASE NO. 2010-3275

1. Said Police Officer Frank Torres, while assigned to the 7th Precinct, on or about and between February 1, 2010 and November 24, 2010, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer did engage in mixed media conversations (via telephone and text) with Person A and/or Police Officer Rafael Salazar, Tax No. 927463, regarding the exchange of United States Currency between the parties for the purpose of Police Officer Salazar absenting himself from Person A's court proceedings.

P.G. 203-10, Page 1, Paragraph 5

**PUBLIC CONTACT – PROHIBITED
CONDUCT
GENERAL REGULATIONS**

2. Said Police Officer Frank Torres, while assigned to the 7th Precinct, on or about and between February 1, 2010 and November 19, 2010, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer did continue to have telephone contact with Person A, who he had transported from the 7th Precinct to Central Booking on February 1, 2010, while Person A's criminal court case was pending.

P.G. 203-10, Page 1, Paragraph 5

**PUBLIC CONTACT – PROHIBITED
CONDUCT
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3. Said Police Officer Frank Torres, while assigned to the 7th Precinct, on or about April 28, 2011, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer did impede an active criminal investigation in that said Police Officer did provide inaccurate and misleading information to the District Attorney's Office.

P.G. 203-10, Page 1, Paragraph 5

**PUBLIC CONTACT – PROHIBITED
CONDUCT
GENERAL REGULATIONS**

4. Said Police Officer Frank Torres, while on-duty and assigned to the 7th Precinct, on or about October 20, 2011, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer did impede an Official Department investigation in that said Police Officer did give inaccurate and misleading responses to questions asked of him during an Official Department interview.

P.G. 203-10, Page 1, Paragraph 5

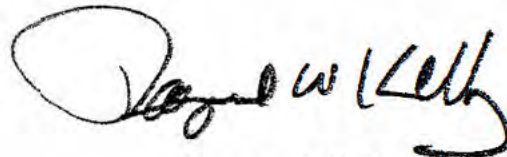
**PUBLIC CONTACT – PROHIBITED
CONDUCT
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In a Memorandum dated April 4, 2013, Assistant Deputy Commissioner Amy J. Porter found Respondent Torres Guilty of Specification Nos. 1, 2, 3, and 4, in Disciplinary Case No. 2010-3275. Having read the Memorandum and analyzed the facts of this matter, I approve the findings, but disapprove the penalty.

The misconduct committed by Police Officer Frank Torres in these matters warrants his separation from the Department. However, with consideration of his otherwise good disciplinary history and service record, I will permit a method of separation other than dismissal from the Department.

It is therefore directed that Police Officer Torres be offered a post-trial vested-interest retirement agreement in which he will immediately file for vested-interest retirement, be suspended for thirty (30) days (to be served, without pay), be placed on One (1) Year Dismissal Probation, waive all time and leave balances, including terminal leave, if any, plus waive all suspension days, with and without pay, if any, served and to be served in these matters (Police Officer Torres shall retire on suspended status).

Such vested-interest retirement shall also include Police Officer Torres' written agreement not to initiate administrative applications or judicial proceedings against the New York City Police Department to seek reinstatement or return to the Department. If Police Officer Torres does not agree to the terms of this vested-interest retirement as noted, this Office is to be notified without delay. This agreement is to be implemented **IMMEDIATELY**.



Raymond W. Kelly
Police Commissioner



POLICE DEPARTMENT

-----X
In the Matter of the Disciplinary Proceedings :
against - : FINAL
Police Officer Frank Torres : ORDER
Tax Registry No. 927601 : OF
Brooklyn Court Section : DISMISSAL
-----X

Police Officer Frank Torres, Tax Registry No. 927601, Shield No. 27341, Social Security No. ending in [REDACTED] having been served with written notice, has been tried on written Charges and Specifications numbered 2010 3275, as set forth on form P.D. 468-121, dated May 1, 2012, and after a review of the entire record, has been found Guilty as Charged.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Frank Torres from the Police Service of the City of New York.

RAYMOND W. KELLY
POLICE COMMISSIONER

EFFECTIVE:



POLICE DEPARTMENT

April 4, 2013

-----X
In the Matter of the Charges and Specifications : Case No.
- against - : 2010-3275
Police Officer Frank Torres :
Tax Registry No. 927601 :
Brooklyn Court Section :
-----X

At: Police Headquarters
One Police Plaza
New York, New York 10038

Before: Honorable Amy J. Porter
Assistant Deputy Commissioner - Trials

APPEARANCE:

For the Department: Javier Seymore, Esq.
Department Advocate's Office
One Police Plaza
New York, New York 10038

For the Respondent: Craig Hayes, Esq.
Worth Longworth & London, LLP
111 John Street-Suite 640
New York, New York 10038

To:

HONORABLE RAYMOND W. KELLY
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NEW YORK 10038

The above-named member of the Department appeared before me on February 11, 2013 charged with the following:

1. Said Police Officer Frank Torres, while assigned to the 7th Precinct, on or about and between February 1, 2010 and November 24, 2010, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer did engage in mixed media conversations (via telephone and text) with Person A and/or Police Officer Rafael Salazar, Tax No. 927463, regarding the exchange of United States Currency between the parties for the purpose of Police Officer Salazar absents himself from Person A's court proceedings.

P.G. 203-10, Page 1, Paragraph 5 PUBLIC CONTACT – PROHIBITED
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2. Said Police Officer Frank Torres, while assigned to the 7th Precinct, on or about and between February 1, 2010 and November 19, 2010, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer did continue to have telephone contact with Person A, who he had transported from the 7th Precinct to Central Booking on February 1, 2010, while Person A's criminal court case was pending.

P.G. 203-10, Page 1, Paragraph 5 PUBLIC CONTACT PROHIBITED
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3. Said Police Officer Frank Torres, while assigned to the 7th Precinct, on or about April 28, 2011, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer did impede an active criminal investigation in that said Police Officer did provide inaccurate and misleading information to the District Attorney's Office.

P.G. 203-10, Page 1, Paragraph 5 PUBLIC CONTACT PROHIBITED
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4. Said Police Officer Frank Torres, while on-duty and assigned to the 7th Precinct, on or about October 20, 2011, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer did impede an Official Department investigation in that said Police Officer did give inaccurate and misleading responses to questions asked of him during an Official Department interview.

P.G. 203 10, Page 1, Paragraph 5 PUBLIC CONTACT PROHIBITED
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The Department was represented by Javier Seymore, Esq., Department Advocate's Office, and Respondent was represented by Craig Hayes, Esq., Worth, Longworth, and London.

Respondent, through his counsel, entered a plea of Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent, having pleaded Guilty, is found Guilty.

SUMMARY OF EVIDENCE IN MITIGATION

Respondent, a twelve-and-a-half year uniformed member of the service (UMOS), is currently on Modified duty status and assigned to the Brooklyn Court Section, where he has worked for the past year-and-a-half. After graduating from the Police Academy and before his current assignment, Respondent had worked in the 7 Precinct for eleven years. Respondent testified that while he was assigned to the 7 Precinct, he performed patrol duties on the day tour. Respondent has a family with four children, all boys.

Respondent was working on February 1, 2010, and assigned to the 7 Precinct. Respondent stated that his regular tours back then were 0700 x 1540 hours. When he came into work on February 1, Respondent was assigned to a "sector and then asked to escort a prisoner to Central Booking." Respondent recognized the prisoner, Person A, as "a close friend of the family." Person A told Respondent that while he was driving across

the Williamsburg Bridge, he got into an accident. Person A was charged with Driving While Intoxicated (DWI).

Respondent testified that after he transported Person A, Police Officer Rafael Salazar¹ called him. Respondent knew Salazar as just a "fellow officer" from the 7 Precinct. When Salazar contacted him, Salazar was "really upset that he had arrested a friend of mine. He was willing to help him out in any way." Salazar continued to call Respondent because Salazar was "feeling bad that he was trying to help my friend and that he did a bad thing by arresting him."

Respondent called Person A and told him that Salazar felt very bad about what he had done and that if Salazar had known that Person A was Respondent's friend, he would have let Person A go. Respondent also told Person A that Salazar was willing to help in any way.

Respondent acknowledged that eventually an agreement was reached that if Salazar helped Person A out with the case, Person A would give Salazar money. Respondent acknowledged that Salazar had called Respondent first to ask if Person A could help him out and in return he would help Person A out. When Respondent was asked if he contacted the Internal Affairs Bureau (IAB) when Salazar made this proposal to him, he replied "No, but I should have." Respondent admitted that he should have contacted IAB because he "realized that something was going on, like really wrong."

Respondent acknowledged that he contacted Person A and advised him that Salazar was willing to not go to court for a fee. Person A agreed to pay a thousand dollars to avoid prosecution. Respondent told Salazar that Person A was willing to pay this money so he wouldn't show up. Respondent testified that there were phone calls back and forth

¹Police Officer Rafael Salazar resigned from the New York City Police Department on April 28, 2012.

between himself and Salazar and himself and Person A, but usually Salazar initiated contact with Respondent.

Respondent acknowledged that he “was actually the middle man” and after a couple of conversations that went “back and forth being the middle man” he expected to receive a financial benefit for himself of a thousand dollars. When Respondent was asked if this scheme ever played out or if there was ever any money transferred between Person A and Salazar, Respondent said, “There was no benefits, nothing was ever exchanged and nothing was ever done.”

During this time Respondent was having financial difficulties. Specifically, he had a civil judgment against him for twenty thousand dollars. This loan has now been paid. Respondent acknowledged that his financial trouble contributed to his decision to receive a fee for his role in this scheme.

On April 28, 2011, Respondent was called into the District Attorney’s (DA) Office and questioned by Assistant District Attorney (ADA) Julio Cuevas. ADA Cuevas asked Respondent about Person A’s case and the transaction between Person A and Salazar. Respondent testified that he did not tell the ADA about the agreement between Person A and Salazar. Respondent said, “At that point, the only thing I mentioned was that PO Salazar, we had previous conversations where he needed a loan.” Respondent told the ADA that he was talking with Salazar about getting Salazar a loan or lending him money.

Respondent confirmed that there was never any money exchanged or any final payoff between the parties in this case. Respondent reiterated that there were phone calls between himself and Salazar and himself and Person A.

On October 20, 2011, Respondent was questioned in an official Department interview about the phone calls. Respondent testified, "During the initial GO I spoke to them and I told them that basically PO Salazar was calling me and asking me for a personal loan. And then that's when he mentioned Person A." Respondent told his interviewers that the money he was agreeing to receive from Salazar was for finding Salazar an apartment and getting a finder's fee.

Respondent acknowledged that he was not telling the truth in the beginning of the interview. When Respondent was asked if eventually he explained the real details of the agreement between himself, Salazar, and Person A, Respondent stated, "Yes. I told them exactly what was going on." Towards the end of the interview, Respondent explained exactly what Salazar was expecting to receive, who he was receiving it from and what the money was for.

Respondent did not recall any tapes or recordings of conversations being played during his interview. He did recall that during the interview there were transcripts from which they were reading and being asked what certain agreements were. Respondent "explained exactly what was the agreement and everything that happened."

Respondent testified that he has never been in trouble in his life:

I worked out there, I was never in trouble, never no CCRBs, no major complaints against me. And I feel that I should have gone forward and went to IAB and notified them, as I feel really bad that this came down and I'm sorry that I should have come forward, you know, before the investigation would have gone forward.

In response to whether there was anything he would like to say to be reviewed before a decision is made on his penalty, Respondent replied:

Definitely. Like I said, I'm sorry for not going forward to IAB and telling the Department what happened. I misled them. But I'll be honest with you, ever

since I was young I wanted to be an officer. I was the type of officer that went out there, like community policing. I have great ties in the community where I work. I actually grew up in the same community that I worked. I was the type of officer that went out there and knew everybody. I got along, I did my job, and there was never complaints against me. I had no complaints of corruption or nothing major. And I think I deserve that, you know, being that I have four boys at home, I deserve a chance to continue in this job. This is what I wanted to do all my life... I went out there, I worked, I didn't get in trouble until I got tied up with this situation, which I should have gone and let the authorities know about it. I mean, let IAB and the Department know about what happened. But I consider myself a great officer with great community ties out there. Every day I wake up and go to work, very responsible, and I have my children out there, I need to take care of them. I can't go and tell them one day and say I was - I was terminated by - you know because I was being a great officer, fellow officer, I was helping a fellow officer. And I think I deserve a chance to continue at this job.

On cross-examination, Respondent acknowledged that in regard to Specification No. 1, there were about 88 cell phone text conversations between himself and Salazar and Person A. Respondent testified that he knew Salazar from working together and that "there could have been many phone calls and that was probably why there was a lot of phone calls, but I don't think it was pertaining to this case." Respondent did not recall if there were 50 phone calls between the time periods of February 1, 2010, to November 24, 2010. At the official Department interview Respondent explained "that sometimes what they had listed down on their people with like the phone records, there's a lot of missed calls and basically I'd call back, and that's why it came up to that amount of phone calls."

When questioned by the Court, Respondent explained, "Basically, let's say they call me and I see a missed call, I'll call them back. And when I looked at the transcript with all the records, the phone records, that's where it added to so many phone calls. But it was not actual calls made you know, spoken to."

During cross examination, Respondent said that in his conversations with Salazar they used the code word "rent" and that "rent was about the money." Respondent

acknowledged that when he and Salazar were discussing gas money, this was because Salazar needed the bribery money to cover some of his gas expenses. Respondent testified that there were times that he sent text messages to Salazar stating "Don't go" and that this meant "Don't go to Court."

Respondent acknowledged that in the beginning when he was interviewed by the DA's Office and IAB, he was not truthful with them about the scheme. Respondent decided to tell the truth because "I knew that was not my character so I I decided to go forward and tell them the truth...That's not the way I am, that's not the way I was raised...I thought let me just go forward, and let them know what actually happened."

Respondent acknowledged that in the two interviews he lied. Respondent agreed that he changed his mind when the investigators started showing him what they had: the wire tap information, copies of text messages, and the control calls that were made between Respondent and Salazar. Respondent testified, "I decided to go forward and tell them the truth and and they were better for all for all of us."

When questioned by the Court, Respondent explained that money was never exchanged and this transaction never happened "because most most of the time when -- what actually was going on with this -- this is situation was P.O. Salazar calling me. And after November, I never heard from him again. We never continued talking about the case...There was no more phone conversation. There was nothing going on. Months passed by and I I never saw him again." Respondent did not know why he never heard from him again.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). Respondent was appointed to the Department on September 29, 2000. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Department recommended that Respondent be terminated.

In his request for a penalty less than termination, Respondent's counsel described the mitigating factors to be considered. Respondent became involved to help out a friend. Respondent was contacted by Salazar who took the first step, initiated the scheme and eventually resigned. Regarding Specifications No. 1 and No. 2, the plans that Respondent made to receive bribe money were never completed. No money ever exchanged hands. After Respondent did not hear from Salazar, Respondent did not call Salazar or try to resuscitate their scheme.

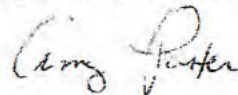
Regarding Specification No. 3, Respondent initially tried to avoid responsibility, and even when confronted with the evidence, he continued to deny it. Respondent's attorney argued that Respondent could have continued his denials. Instead, in the second part of his official Department interview which is the subject of Specification No. 4, he admitted everything. Respondent's attorney maintained that during an official Department interview when someone is denying misconduct, even serious misconduct, that denial generally does not change; an admission is especially rare in a case of felonious conduct, when a police officer knows his admission will be catastrophic to his career. Although no promises or offers were made to Respondent, he confessed. He

answered every question, giving his interviewers every little detail. He went through the tapes and the transcripts and explained everything, including who was to be paid and how much was to be paid. He assisted in and became an asset to the Department's investigation. That investigation ultimately led to these charges and to Respondent's own downfall. Respondent's counsel argued that Respondent should be given credit for his cooperation.

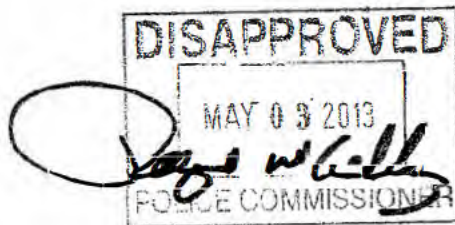
Counsel argued that, for all these reasons, as well as Respondent's behavior having been a one time departure in his career, Respondent is seeking a penalty less than termination. In the alternative, Respondent seeks to receive vested interest retirement.

The Court finds Respondent's participation in a conspiracy to commit bribery and interfere with a witness in the criminal justice system to be egregious. This conduct is patently opposed to the duties of police officers, who are themselves required to abide by the same laws that they are entrusted to enforce. Accordingly, it is recommended that Respondent be DISMISSED from the Department.

Respectfully submitted,



Amy J. Porter
Assistant Deputy Commissioner - Trials



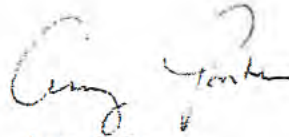
POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER FRANK TORRES
TAX REGISTRY NO. 927601
DISCIPLINARY CASE NO. 2010-3275

For his last three annual performance evaluations, Respondent received ratings of 3.5 ("Highly Competent/Competent") in 2012, 2011 and 2010. He has been awarded one medal for Excellent Police Duty. [REDACTED]

[REDACTED] Respondent
has no prior formal disciplinary record.

For your consideration.



Amy J. Porter
Assistant Deputy Commissioner Trials